

The Rajasthan Agricultural Produce Markets (Establishment of Sub-Market Yards) Rules, 1987

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State of Rajasthan - Act

The Rajasthan Agricultural Produce Markets (Establishment of Sub-Market Yards) Rules, 1987

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The Rajasthan Agricultural Produce Markets (Establishment of Sub-Market Yards) Rules, 1987

Rule

THE-RAJASTHAN-AGRICULTURAL-PRODUCE-MARKETS-ESTABLISHMENT-OF-SUB-MARKET-YARDS-RULES-1987 of 1987

Published on 11 May 1987

Commenced on 11 May 1987

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The Rajasthan Agricultural Produce Markets (Establishment of Sub-Market Yards) Rules, 1987

Published vide Notification No. F. 10(40) Agriculture/Group 2/B/85 dated 11.5.1987-Rajasthan Gazette, Part 4-C(2), dated 11.6.1987, page 35

S.O. 38. - In exercise of the powers conferred under clause (i) of sub-section (2) of section 36 of Rajasthan Agricultural Produce Markets Act, 1961 (Rajasthan Act

No. 38 of 1961

) the State Government hereby makes the following rules and orders with reference to the proviso to sub-section 4 of the

said section that previous publication of the rules be dispensed with as the State Government considers that the said rules be brought into force at once, namely:-

1.

Short title and commencement.

(1)

These rules shall be called the Rajasthan Agricultural Produce Markets (Establishment of Sub-Market Yards) Rules, 1987.

(2)

It shall come into force at once.

2.

Definitions.

(1)

In these rules, unless there is anything repugnant in the subject or context:-

(a)

"Act" means the Rajasthan Agricultural Produce Markets Act, 1961;

(b)

"Director" means the Director of Agricultural Marketing for the State of Rajasthan;

(c)

"Market Committee" means a market committee established under section 6;

(d)

"Sub-market Yard" means an enclosure, building or locality declared to be a sub-market yard under section 5.

(2)

Words and expression used but not defined in these rules and defined in the Rajasthan Agricultural Produce Markets Act, 1961 (Act

No. 38 of 1961

) and Rajasthan Agricultural Produce Markets Rules, 1963 shall have the same meaning as assigned to them therein.

3.

Criteria for declaration of sub-market yard.

- The following shall be the criteria for declaration of sub-market yard:-

(a)

No. of licenced traders/A class brokers operating in the proposed sub-market yard. The number of such licencees should be atleast 15 or any higher figure as may be notified by the State Government from time to time;

(b)

Volume of transactions conducted by these traders/A class brokers;

(c)

Likely income from market fees in a year. This should be atleast rupees forty thousand per annum or such higher figure as may be laid down by the State Government from time to time;

(d)

Distance from the principal market yard or sub-market yard variable either on the basis of density to population or geographical location. The distance from nearest principal market yard or sub-market yard in the market area of the market committee should normally be 20 kilometers and more;

(e)

Likely expenditure on staff had facilities in the proposed sub-market yard;

(f)

Economic and financial viability of proposed sub-market yard;

(g)

Proximity to Banking facility;

(h)

Any other criteria as may be laid down by the State Government from time to time.

4.

Procedure for declaration of sub-market yard.

(1)

Wherever a sub-market yard is to be established, the concerned market committee shall submit the proposal together with reason to the Director.

(2)

The Director shall examine such proposal on the basis of the criteria under Rule 3 and shall submit his report to the State Government with his recommendation.

(3)

The State Government on being satisfied on the basis of the reports received from the Director, or suo moto of the need for a sub-market yard as per Rule 3, may establish sub-market yard as it deems proper under section 5(2) of the Act and issue notification accordingly.

(4)

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[Added by Notification No. P. 10(28)/Agriculture/Group-2/85, dated 10.1.2006-Rajasthan Gazette, Extraordinary, Part IV-C(I), dated 10.1.2006, p. 113, vide G.S.R. 75, enforced w.e.f. 10.1.2006 = 2006 RSCS/Pt. II/P. 106/H. 60 w.e.f. 10.1.2006.]

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